

CYBERSECURITY: ICO DAWN RAID TASK

ANSWER TEMPLATE

(1) Introduction

Hi, this is Natascha calling from Clifford Chance. I understand you wanted an overview in the event World Catch Travel is ever subject to an ICO Dawn Raid, so I'm here to walk you through the key points.

(2) What is an ICO Dawn Raid

Just so you're aware, a Dawn raid is basically an unannounced visit from the ICO. It's not something they jump to right away, they usually only take that step if earlier attempts to get information haven't been successful.

(3) What are the ICO's Power's in a Dawn Raid

In terms of what the ICO is allowed to do during a dawn raid, they can come onto the company's premises and look around without prior notice. They're allowed to check devices and systems that handle personal data, and they can take copies of documents or materials if they think it's relevant to their investigation or to determine whether the company has met its obligations under data protection law.

(4) What information can be withheld from the ICO

There are certain types of information the ICO isn't allowed to take or review, even during a dawn raid, such as legally privileged material. This means any confidential communications with your lawyers, especially where advice is being given or litigation is involved. Those documents don't need to be handed over.

It helps to keep privileged material separate in advance and clearly label it 'Privileged and Confidential' so it can be easily ID'd. If inspectors do try to access or remove something labeled as privileged, note the document and calmly state your objection at the time.

(5) Practical information on how to react

If a raid does take place, the most important thing is to stay calm and cooperate. Since, the Inspectors are legally entitled to be there if they have a warrant, so there is no benefit in resisting or arguing. Instead manage the situation properly.

Someone senior should meet them at reception, ask to see the warrant, and take a copy so you know exactly what areas and materials are covered. From there, staff should avoid volunteering extra information, and only respond to direct requests.

If any documents or devices are taken or reviewed, someone should keep a written record of what's accessed or removed. As mentioned before, if you spot anything that's legally privileged, note the document name or the device and make it clear you're objecting to its seizure on privilege grounds.

Finally, legal counsel should be contacted right away so we can guide in real time and make sure everything stays within proper limits.

(6) Any other information

One thing I'd emphasize is that preparation makes all the difference. Even if a raid never happens, having a simple internal plan: knowing who to call, how to identify privileged material, and who should deal with inspectors...takes a lot of pressure off. It also shows the ICO that the business is organized and acting in good faith, which can influence how they handle things on the day. The staff doesn't need every detail, but key people should know the basics so no one panics or says more than they should. They may also speak to staff and ask for explanations where needed.

(7) End call and offer your assistance going forward

If you'd like, I can help you put together a short readiness plan or walk key staff through what to do so you're not caught off guard. I'm happy to follow up with a quick written summary or training outline, just let me know what would be most helpful, and we'll take it from there.

Hello, this is Natascha calling from Clifford Chance.

You asked for a rundown down if

World Catch Travel

is ever subject to an ICO dawn raid, so I'm going to walk you through a few key points.

A dawn raid is basically an unannounced visit from the ICO.

It's not their first move — they usually only take that step if earlier attempts to get information haven't worked.

During a dawn raid, the ICO can come onto your premises without notice.

They can look around, check systems and devices that handle personal data, and make copies of documents or materials they think are relevant.

They use this to decide whether the company has met its data protection obligations.

There are also some things they can't take or review, even during a raid.

Legally privileged material is the main one.

That includes confidential communications with your lawyers, especially where advice or litigation is involved.

You don't have to hand those over.

To protect that kind of material, it helps to separate it in advance and clearly label it "Privileged and Confidential" so it's easy to identify.

If inspectors try to access or remove something that's privileged, just note the document and calmly state your objection at the time.

If a raid does take place, the most important thing is to stay calm and cooperate.

Inspectors are legally entitled to be there if they have a warrant, so there's no benefit in resisting or arguing.

What matters is managing the situation properly.

Someone senior should meet them at reception, ask to see the warrant, and take a copy so you know exactly what areas and materials are covered.

From there, staff should avoid volunteering extra information and only respond to direct requests.

If any documents or devices are taken or reviewed, someone should keep a written record of what was accessed or removed.

And if you spot anything that's legally privileged, note the document or device and make it clear you're objecting to its seizure.

Legal counsel should also be contacted right away so we can guide you in real time and make sure everything stays within proper limits.

Preparation makes a big difference.

Even if a raid never happens, having a simple internal plan — knowing who to call, how to identify privileged material, and who should deal with inspectors — takes a lot of pressure off.

It also shows the ICO that the business is organized and acting in good faith, which can influence how they handle things on the day.

The staff doesn't need every detail, but key people should know the basics so no one panics or says more than they should.

Inspectors may also speak to staff and ask for explanations where needed.

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